

1 ENGROSSED HOUSE
2 BILL NO. 3695

By: Gise of the House

3 and

4 Hamilton of the Senate

5
6 An Act relating to motor vehicles; amending 47 O.S.
7 2021, Section 11-904, as amended by Section 65,
8 Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section
9 11-904), which relates to personal injury accidents;
10 modifying scope of certain defined term; and
11 providing an effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 47 O.S. 2021, Section 11-904, as
14 amended by Section 65, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025,
15 Section 11-904), is amended to read as follows:

16 Section 11-904. A. Any person who is involved in a personal
17 injury accident while driving or operating a motor vehicle within
18 this state and who is in violation of the provisions of subsection A
19 of Section 11-902 of this title may be charged with a violation of
20 the provisions of this subsection as follows:

21 1. Any person who is convicted of a violation of the provisions
22 of this subsection shall be deemed guilty of a misdemeanor for the
23 first offense and shall be punished by imprisonment in the county
24 jail for not less than ninety (90) days nor more than one (1) year,

1 and a fine of not more than Two Thousand Five Hundred Dollars
2 (\$2,500.00); and

3 2. Any person who is convicted of a violation of the provisions
4 of this subsection after having been previously convicted of a
5 violation of this subsection or of Section 11-902 of this title
6 shall be deemed guilty of a Class B5 felony offense and shall be
7 punished by imprisonment in the custody of the Department of
8 Corrections for not less than one (1) year and not more than five
9 (5) years, and a fine of not more than Five Thousand Dollars
10 (\$5,000.00).

11 B. ~~1.~~ Any person who causes an accident resulting in great
12 bodily injury to any person other than himself or herself while
13 driving or operating a motor vehicle within this state and who is in
14 violation of the provisions of subsection A of Section 11-902 of
15 this title may be charged with a violation of the provisions of this
16 subsection. Any person who is convicted of a violation of the
17 provisions of this subsection shall be deemed guilty of a Class B1
18 felony offense punishable by imprisonment in the custody of the
19 Department of Corrections for not less than four (4) years and not
20 more than twenty (20) years, and a fine of not more than Five
21 Thousand Dollars (\$5,000.00).

22 ~~2.~~ C. As used in this ~~subsection~~ section, "great bodily injury"
23 means bodily injury which creates a serious compound bone fracture,
24 protracted and obvious disfigurement, protracted loss or impairment

of the function of a body part, organ or mental faculty, or
substantial risk of death ~~or which causes serious, permanent~~
~~disfigurement or protracted loss or impairment of the function of~~
~~any bodily member or organ.~~

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 26th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate